

1.

CASE #	CASE NAME	HEARING NAME
CVPS2504289	CITIBANK N.A. VS RAMIREZ	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CITIBANK N.A.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508233	CAPITAL ONE N.A. VS CHAVEZ	MOTION FOR JUDGMENT ON THE PLEADINGS ON OF CAPITAL ONE N.A. BY CAPITAL ONE N.A.

Tentative Ruling: Plaintiff Capital One, N.A.'s motion for judgment on the pleadings is DENIED. Defendant Israel Chavez's answer sets up the affirmative defenses of anticipatory repudiation and recoupment based on various state and federal laws. Such matters cannot be decided on the pleadings alone. (*Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 331.)

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508534	CITIBANK N.A. VS RODRIGUEZ	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF CITIBANK N.A. BY CITIBANK N.A.

Tentative Ruling: Plaintiff Citibank, N.A.'s unopposed motion for judgment on the pleadings is GRANTED.

A motion for judgment on the pleadings is properly granted in a plaintiff's favor if "the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint." (CCP 438(c)(1)(A).) In ruling on the motion, the court is confined to the face of the pleadings and matters required to be judicially noticed. (CCP 438(d).)

Here, plaintiff's complaint alleges a cause of action for breach of contract (written). This cause of action requires plaintiff to show: (1) the existence of a contract, (2) its performance under the contract or excuse for nonperformance, (3) defendant Sonia Rodriguez's breach, and (4) resulting damages. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) The complaint and matters judicially noticed show all four elements: the existence of a credit card agreement between plaintiff and defendant; plaintiff's performance of its duties under the agreement, including issuing a credit card to defendant; defendant's breach of the agreement by failing to make the required payments; and damages in the amount of \$3,211.42. Nothing set forth in defendant's answer negates any of these elements. The court therefore orders entry of judgment in favor of plaintiff and against defendant.

All future hearing dates are VACATED.